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The
WOMAN
with the
WOLVES
A Novelette
of MYSTERY



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A Point of Testimony

by Carolyn Wells

I

Bert Bayliss was the funniest detective you ever saw. He wasn't the least like Vidocq, Lecoq or Sherlock, either in personality or mentality. And perhaps the chief difference lay in the fact that he possessed a sense of humor, and that not merely an appreciative sense, either. He had an original wit and a spontaneous repartee that made it well-nigh impossible for him to be serious.

Not quite, though, for he had his thinking moments; and when he did think, he did it so deeply yet rapidly that he accomplished wonders.

And so he was a detective. Partly because it pleased his sense of humor to pursue a calling so incongruous with his birth and station, and partly because he couldn't help it, having been born one. He was a private

detective, but none the less a professional; and he accepted cases only when they seemed especially difficult or in some way unusual.

As is often the case with those possessed of a strong sense of humor, Bayliss had no very intimate friends. A proneness to fun always seems to preclude close friendships, and fortunately precludes also the desire for them. But as every real detective needs a Dr. Watson as a sort of mind-servant, Bert Bayliss invented one, and his Harris (he chose the name in sincere flattery of Sairey Gamp) proved competent and satisfactory. To Harris Bayliss propounded his questions and expounded his theories, and being merely a figment of Bayliss' brain, Harris was always able to give intelligent replies. Physically, too, young Bayliss was far from the regulation type of the prevalent detective of fiction.

No aquiline nose was his, no sinister eyebrows, no expression of omniscience and inscrutability. Instead, he was a stalwart, large-framed young man, with a merry, even debonair face, and a genial, magnetic glance. He was a man who inspired confidence by his frankness, and whose twinkling eyes seemed to see the funny side of everything.

Though having no close friendships, Bayliss had a wide circle of acquaintances, and was in frequent demand as a week-end visitor or a dinner guest. Wherefore, not being an early riser, the telephone at his bedside frequently buzzed many times before he was up of a morning.

Every time that bell gave its rasping whir Bayliss felt an involuntary hope that it might be a call to an interesting case of detective work, and he was distinctly disappointed if it proved to be a mere social message. One morning just before nine o'clock the bell awakened him from a light doze, and taking the receiver, he heard the voice of his old friend Martin Hopkins talking to him.

"I want you at once," the message came; "I hope nothing will prevent your coming immediately. I am in Clearbrook. If you can catch the nine-thirty train from the City, I will meet you here at the station at ten o'clock. There has been murder committed and we want your help. Will you come?"

"Yes," replied Bayliss. "I will take the nine-thirty. Who is the victim?"

"Richard Hemmingway, my lifelong friend. I am a guest at his house. The tragedy occurred last night, and I want you to get here before anything is touched."

“I’ll be there! good-by,” and hanging up the receiver, Bayliss proceeded to keep his word.

“You see, Harris,” he said, silently, to his impalpable friend, “Martin Hopkins is a gentleman of the old school and a man whom I greatly admire. If he calls me to a case requiring detective investigation, you may be sure it’s an interesting affair and quite worthy of our attention. Eh, Harris?” The imaginary companion having agreed to this, Bayliss went calmly and expectantly on his way.

At the Clearbrook station he was met by Mr. Hopkins, who proposed that they walk to the house in order that he might tell Bayliss some of the circumstances.

“Mr. Hemmingway was my oldest and best friend,” began Mr. Hopkins, “and, with my wife and daughter, I’ve been spending a few days at his home. He was a widower, and his household includes his ward, Miss Sheldon, his nephew, Everett Collins, a housekeeper, butler, and several under-servants. This morning at six o’clock, the butler discovered the body of Mr. Hemmingway in his library, where the poor man had been strangled to death. Clapham, that’s the butler, raised an alarm, at once, and ever since then the house has been full of doctors, detectives and neighbors. We are almost there now, so I’ll tell you frankly, Bayliss, that I sent for you to look after my own interests. You and I are good friends, and you’re the best detective I know. The evidence seems, so far, to point to some one in the house, and among those addle-pated, cocksure detectives now on the case it is not impossible that I may myself be suspected of the crime.”

“What!” cried Bert Bayliss in amazement.

“Just that,” went on the old man, almost smiling. “Hemmingway and I have had large business transactions of late, and as a big bundle of securities has disappeared from his safe, it may look as if I had a hand in the matter.”

“I can’t quite take that seriously, Mr. Hopkins, but I’ll be glad to look into the case and perhaps I can give justice a boost in the right direction. You’ve no further hints to give me?”

“No, the hints all point one way, and you’ll discover that for yourself soon enough.” They walked together up the short path that led to the house of the late Richard Hemmingway.

Clearbrook was a small settlement of well-to-do society people, who wished to live near but not in New York. The houses were rather pretentious, with well-kept grounds, and picturesque flower-beds, but Bert Bayliss paid little attention to the landscape as he hurried to the Hemmingway mansion. Once in the drawing-room, Bayliss was presented by Mr. Hopkins to his wife and daughter, also to Miss Sheldon and Mr. Collins.

It was surely a tribute to the young man that all these people, who were fully prepared to treat the detective with a supercilious hauteur, were won at once by his affable and easy demeanor and involuntarily greeted him as a man of their own class and standing.

Mrs. Estey, the housekeeper, was also in the room, and at the moment of Bayliss' arrival, Coroner Spearman was about to begin his preliminary queries of investigation. Quite content to gain his knowledge of the case in this way, Bayliss settled himself to listen.

"Harris," he said silently to his faithful friend, "these are all refined and sensitive people, but, excepting Mr. Hopkins, not one shows a deep or abiding grief at the death of this gentleman. Therefore I deduce that with most of them the loss is fully covered by inheritance."

"Marvelous, my dear Bayliss, marvelous!" replied Harris correctly.

At the command of the coroner, Clapham, the butler, was summoned to give his account of the discovery of the body.

"I came down-stairs at twenty to six, sir," said the pompous but deferential Englishman, "and it would be about six when I reached the master's library. The door was closed, and when I opened it I was surprised to find one of the lamps still burning, the one by the desk, sir. By its light I could see the master still sitting in his chair. At first I thought he had come down-stairs early, to do some work; then I thought he had been working there all night; and then I thought maybe something was wrong. These thoughts all flew through my mind in quick succession, sir, and, even as I thought them, I was raising the blinds. The daylight poured in, and I saw at once my master was dead, strangled, sir."

"How did you know he was strangled?" asked the coroner.

"Because, sir, his head was thrown back and I could see black marks on his throat."

"What did you do then?"

“First I called Mrs. Estey, who was already in the dining-room, and then, at her advice, I went to Mr. Collins’ door and knocked him awake. He hurried down-stairs, sir, and he said—”

“Never mind that. Mr. Collins will be questioned later.”

“Harris,” said Bayliss silently to his friend, “that coroner is no fool.”

“No,” said Harris.

“If that is all the account of your finding of Mr. Hemmingway’s body,” continued Mr. Spearman, “tell us now what you know of Mr. Hemmingway’s movements of last evening.”

“He was in his library all the evening,” said Clapham. “He went there directly after dinner, and gave me orders to admit three gentlemen that he expected to call. He told me, sir, that I need not wait up to let them out, as they would stay late, and he would see them to the door himself. The three gentlemen came, sir, between nine and ten o’clock. They came separately, and after I had shown the last one into Mr. Hemmingway’s library I did not go to the room again—until this morning. I went to bed, sir, at about eleven o’clock, and at that time they were still there, as I heard them talking when I left the dining-room, sir.”

“Good servant, Harris,” commented Bayliss; “if this household is broken up, he’ll have no trouble in finding a new situation and yet—is he just a trifle too fluent?”

“Perhaps,” said Harris agreeably.

Mrs. Estey simply corroborated Clapham’s story, and was followed by Everett Collins, who had been the next to appear upon the scene of the tragedy.

Bayliss looked at this young man with interest. He was not of an attractive personality, though handsome and well set up. He had the physical effects of an athlete, but his face was weak and his glance was not straightforward.

“He impresses me as untrustworthy,” Bayliss confided to Harris, “and yet, confound the fellow, there’s something about him I like.”

“Yes,” said Harris.

Mr. Collins had little to say. He had been wakened by Clapham from a sound sleep and had hastily run down-stairs to find his uncle indeed dead, and evidently strangled. As to his own movements the night before, he had spent the evening out, had returned at about half-past eleven, had let

himself in with his latchkey and had gone to bed. He had noticed that the library door was closed, and he could not say whether any one was in the room or not.

Miss Ruth Sheldon testified to the effect that she had played bridge with Mr. and Mrs. Hopkins and Miss Ethel Hopkins until about eleven, when they had all retired. The Hopkins family corroborated this, and all agreed that they had heard no sound of any sort down-stairs after reaching their rooms.

“It was Mr. Hemmingway’s habit,” volunteered Miss Sheldon, “if he had late callers, to let them out himself, to close the front door quietly after them, and then to go up to his room with great care in order not to disturb any of us who might be asleep. He was most thoughtful of others’ comfort, always.”

The members of the household having been heard, Mr. Spearman turned his attention to some others who sat in a group at a small table. One of these was the lawyer, Mr. Dunbar. He simply stated that he had full charge of Mr. Hemmingway’s legal affairs, and was prepared to make an accounting when required. But he added that his client’s business with him was not extensive, as the late financier was accustomed personally to look after all such matters as did not require actual legal offices.

Mr. Hemmingway’s private secretary, George Fiske, testified that he was in the habit of coming to Mr. Hemmingway’s home every day from ten o’clock to four. He had left as usual the day before, at four o’clock, and knew of nothing unusual regarding his employer or his business matters at that time. Fiske had been sent for earlier than usual on this particular morning but could throw no light on the affair. He knew the three men who called, and they were three of the richest and most influential citizens of Clearbrook, who were more or less associated with Mr. Hemmingway in some large financial interests. As a confidential secretary, Mr. Fiske courteously but firmly declined to go into details of these matters at present.

There seemed to be no reason to suspect any one whose name had been mentioned so far, and the coroner next turned his attention to the possibility of an intruder from outside, who had forced an entrance after the three gentlemen had departed and before Mr. Hemmingway could have left his library.

But investigation proved that the windows were all securely fastened and that the front door shut with a spring lock which could be opened only from the outside by a latchkey. No one, save those who were already accounted for, possessed a latchkey, and as no doors or windows had been forced, it began to look to the coroner as if the evidence pointed to some one inside the house as the criminal.

The doctor declared that Mr. Hemmingway had died between twelve and one o'clock and the three men who had called, being asked over the telephone, asserted that they left the house about midnight. One of these, Mr. Carston, had tarried after the others and had talked a few moments with Mr. Hemmingway at his door, but though this would seem to make Mr. Carston the last person known to have had speech with the dead man, nobody dreamed for a moment of suspecting him. Bayliss' eyes traveled over the assembled listeners.

"Pshaw," he said silently to Harris, "there are too many suspects. Granting the criminal was in the house, it might have been any of the servants, any of the guests, the ward or the nephew. Every one of them had opportunity, for, apparently, after midnight the callers were gone and every one in the house was sound asleep except the victim and the criminal. But the fact of strangulation lets out Mrs. and Miss Hopkins, who are too slender and delicate for such a deed. That big, athletic Miss Sheldon might have done it, had she been inclined; that gaunt, muscular housekeeper could have accomplished it; and as to the men, young Collins, old Mr. Hopkins and that complacent butler are all capable of the deed, physically. So, Harris, as we've heard the facts of the case, we'll now hunt for clues and theories."

"Marvelous, Bayliss, marvelous!" breathed Harris with deep admiration.

II

Reaching the library, Bayliss found the Precinct Inspector busily going through the papers in Mr. Hemmingway's desk. Inspector Garson had heard of the clever Bert Bayliss and was glad to meet him, though a little embarrassed lest the city detective should look upon his own methods as crude.

With the coroner's permission the body of the dead man had been removed, but otherwise no changes had been made in the room. Bayliss glanced interestedly about. There were no signs of a struggle. The position of several chairs showed the presence of callers who had evidently sat around in conversation with their host. The desk, though not especially tidy, showed only the usual paraphernalia of a man of business.

By themselves, in an open box, had been laid the articles taken from the dead man's pockets. Bayliss looked at, without touching, the watch, the bunch of keys, the knife, the pencil, the pile of small coins and the handkerchiefs, which, together with a few papers, comprised the contents of the box.

Then Bayliss looked swiftly but minutely at the desk. The fittings of handsome bronze were of uniform design and rather numerous. Every convenience was there, from pen-rack to paste-pot. There were a great variety of pens, pencils and paper-cutters, while many racks and files held a profusion of stationery, cards and letters.

Yet everything was methodical; the plainly labeled packets of letters, the carefully sorted bills and the neat memoranda here and there, all betokened a systematic mind and a sense of orderly classification.

"The motive was, of course, robbery," said the Inspector, as several others followed Bayliss into the library, "for though everything else seems intact, a large bundle of securities, which Mr. Dunbar knows were in Mr. Hemmingway's safe last Friday, are now gone."

"Oh, those," said George Fiske; "I didn't know you looked on those as missing. I have them at my own rooms."

"You have?" said the surprised Inspector. "Why did you not state that fact when interviewed by Mr. Spearman?"

"Because," said the young man frankly, "I didn't consider that the time or place to discuss Mr. Hemmingway's finances. I was his confidential secretary, and though required to render an account at any time, I am careful not to do so prematurely. The bonds in question are at my home because Mr. Hemmingway gave them to me last Saturday to keep for him temporarily. Here is a list of them."

Fiske took a card of figures from his pocket-book and handed it to the Inspector, who glanced at it with satisfaction and approval.

“You did quite right, Mr. Fiske,” he said, “and I’m glad the securities are safe. But then what in your opinion could have been the motive for the deed of last night?”

Fiske made no reply, but the expression on his face seemed to imply, against his will, that he could say something pertinent if he chose.

“Might it not be, Harris,” whispered Bayliss, “that that young man overestimates the confidentialness of his secretaryship at this crisis?”

“H’m,” said Harris.

Meanwhile the Inspector was rapidly looking over a sheaf of opened letters, each of which bore at its top the rubber-stamped date of receipt.

“Whew!” he whistled, as he read one of these documents. He then looked furtively at George Fiske, who was occupied with some clerical work which had to be done at once. Without a word Inspector Garson handed the letter to Bert Bayliss, signifying by a gesture that he was to read it.

After a glance at signature and date, Bayliss read the whole letter:

Sunday Afternoon,
September 9th.

My Dear Mr. Hemmingway:

After our talk of yesterday morning, I feel that I must express more fully my appreciation of your declaration of confidence in me, and my gratitude therefor. I was so surprised when you asked me to act as executor of your will that I fear I was awkward and disappointing in my response. But, believe me, dear sir. I am deeply grateful for your trust in me and I want to assure you that I will perform all the duties of which you told me to the very best of my ability, though I hope and pray the day is far off when such need shall arise. I am not a fluent talker and so take this means of telling you that a chord of my nature was deeply touched when you asked me to assume such a grave responsibility. I am, of course, at your service for further discussion of these matters, but I felt I must formally assure you of my gratitude for your kindness and of my loyalty to your interests. As to the revelation you made to me, it was so sudden and such a surprise, I can not bear to think your suspicions are founded on the truth; but as you requested, I will observe all I can without seeming intrusive or curious. I have in

safe keeping the papers you entrusted to my care, and I hope our present relations may continue for many happy years.

Faithfully yours,
GEORGE FISKE.

With his usual quick eye for details, Bayliss noted that the letter was dated two days before (that is, the day before the murder, which occurred Monday night); it was postmarked at the Clearbrook post-office Sunday-evening, and had therefore, been delivered to Mr. Hemmingway by the first post Monday morning. This was corroborated by the rubber-stamped line at the top of the first page, which read: "Received, September 10."

The letter was among a lot labeled "To be answered," and it seemed to Bayliss a very important document.

"I think," he said aloud to the Inspector, "that we would be glad to have Mr. Fiske tell us the circumstances that led to the writing of this manly and straightforward letter."

George Fiske looked up at the sound of his name. "Has that come to light?" he said, blushing a little at being thus suddenly brought into prominence. "I supposed it would, but somehow I didn't want to refer to it until some one else discovered it."

"Tell us all about it," said Bayliss, in his pleasant, chummy way, and at once Fiske began.

"Last Saturday morning," he said, "Mr. Hemmingway had a long talk with me. He expressed his satisfaction with my work as his secretary and kindly avowed his complete trust and confidence in my integrity. He then asked me if I would be willing to act as executor of his estate, when the time should come that such a service was necessary. He said it was his intention to bring the whole matter before his lawyer in a few days, but first he wished to be assured of my willingness to act as executor. He told me, too, that he would add a codicil to his will, leaving me a moderate sum of money. All of this was on Saturday morning, and when I left at noon, as I always do on Saturdays, he gave me a large bundle of securities, and also his will, asking me to keep them for him for a few days."

"You have his will, then?" asked Inspector Garson quickly.

"I have; and also the bonds of which I have given you a memorandum. They are all at your disposal at any time."

“Then Mr. Hemmingway died without adding the codicil to his will in your favor,” observed Bayliss.

“Yes,” replied Fiske, “but that is a minor matter in the face of the present tragedy.”

Bayliss felt slightly rebuked, but he couldn’t help admiring the manly way in which Fiske had spoken.

“And this conversation occurred on Saturday,” went on Mr. Garson. “You took occasion to write to Mr. Hemmingway on Sunday?”

“I did,” agreed Fiske. “I was so surprised at the whole thing that I was unable to express myself at our interview. I am always tongue-tied under stress of great surprise or excitement. So I sat down Sunday afternoon and wrote to Mr. Hemmingway. I mailed the letter Sunday evening and he had already received it when I reached here on Monday morning, at ten o’clock, as usual.”

“Did he refer to your letter?” asked Bayliss.

“Yes; he said he was glad I wrote it, and that he would answer it on paper that I might also have his sentiments in black and white. Then he said we would discuss the matter more fully after a day or two, and we then turned our attention to other matters.”

“And this revelation he made to you?” queried Inspector Garson, running his eyes over the letter.

Mr. Fiske hesitated and looked not only embarrassed but genuinely disturbed.

“That, Mr. Garson, I want to be excused from telling.”

“Excused from telling! Why, man, it may help to elucidate the mystery of Mr. Hemmingway’s death!”

“Oh, I hope not, I hope not!” said Fiske, so earnestly that both Bayliss and the Inspector looked at him in surprise.

“You do know something,” said Mr. Garson quickly, “that may have a bearing on the mystery, and I must insist that you tell it.”

“It is because it may seem to have a bearing that I hesitate,” said Mr. Fiske gravely. “But, to put it boldly, as I told you I am not fluent under stress of excitement; in a word, then, Mr. Hemmingway implied to me, that—that he had a half-defined fear that sometime his life might—might end suddenly.”

“In the way it did?”

“Yes, in that way. He feared that some one desired his death, and that was the reason he asked me to care for his will and his valuable securities for a few days.”

“Why were these things not in a safety deposit vault?” asked Bert Bayliss.

“They have been; but a few days ago Mr. Hemmingway had them brought home to make some records and changes, and as it was Saturday he could not send them back then, so he gave them to me. I have a small safe at home, and of course I was willing to keep them for him.”

“Then Mr. Hemmingway feared both robbery and murder,” said Bayliss, and Mr. Fiske shuddered at this cold-blooded way of putting it.

“Yes, he did,” said the secretary frankly.

“And whom did he suspect as his enemy?”

“That I hope you will allow me not to answer.”

“I’m sorry, Mr. Fiske,” broke in the Inspector, “but you have knowledge possessed by no one else. You must, therefore, in the interests of justice, tell us the name of the man whom Mr. Hemmingway feared.”

“The man,” said George Fiske slowly, “is the one who inherits the bulk of Mr. Hemmingway’s fortune.”

“Everett Collins, his nephew?”

“His wife’s nephew,” corrected George Fiske. “Yes, since I am forced to tell it, Mr. Hemmingway feared that Mr. Collins was in haste to come into his inheritance, and—and——”

“You have done your duty, Mr. Fiske,” said Inspector Garson, “and I thank you. I quite appreciate your hesitancy, but a crime like this must be punished, if possible, and you need not appear further in the matter. After your evidence the law can take the whole affair into its own hands, and justice will be swift and certain.”

III

The law took its course. Although circumstantial evidence was lacking, the statement of George Fiske and the undoubted opportunity and evident motive, combined, caused the arrest of Everett Collins.

The will, when produced, left nearly all the estate to him, and as he was known to be a thriftless, improvident young man, the majority of those interested felt convinced that he was indeed the villain.

The property of the late Mr. Hemmingway, however, was of far less amount than was generally supposed, and also, the large fortune which he had in trust for his ward, Miss Sheldon, had dwindled surprisingly. But this, of course, was in no way the fault of the nephew, and it was thought that Mr. Hemmingway had perhaps been unfortunate in his investments. George Fiske became executor, as desired by the late millionaire, but probate of the will was deferred until after Everett Collins should have been tried at the bar of justice.

Collins himself was stubbornly quiet. He seemed rather dazed at the position in which he found himself, but had nothing to say except a simple assertion of his innocence.

“And he is innocent, Harris,” declared Bert Bayliss soundlessly. “No villain ever possessed that simple straightforward gaze. Villains are complex. That man may be a spendthrift and a ne’er-do-well, but I’ll swear he’s no murderer, and I’ll prove it!”

“Marvelous, Bayliss, marvelous!” said Harris.

Bayliss had come to Clearbrook on Tuesday, and on Wednesday Collins was arrested.

On Wednesday afternoon Bayliss shut himself up alone in the library to clue-hunt, as he called it. Acting on his conviction that Collins was innocent, he eagerly sought for evidence in some other direction. Seating himself at Mr. Hemmingway’s desk, he jotted down a few notes, using for the purpose a pencil from the pen-tray in front of him.

He looked at the pencil abstractedly, and then he suddenly stared at it intently.

“A clue!” he said mentally to Harris. “Hush, don’t speak,” though Harris hadn’t. “I sure have a clue, but such a dinky one!”

He looked at the pencil as at a valuable curio. He glanced about the desk for others, and found several. In a drawer he found many more. They were all of the same make and same number, and while those on the desk were all more or less well sharpened, those in the drawer had never yet been cut.

“Oh!” said Bayliss, and putting carefully into his pocket the pencil he had used in making his notes, he began scrutinizing the waste-basket.

There were not many torn papers in it, but the top ones were letters, envelopes or circulars, each torn once across. On top of these were some chips of pencil cedar and a trifle of black dust.

As if collecting precious treasure, Bayliss, with extreme care, lifted out the top layer of torn envelopes and, without disarranging the tiny wooden chips and black lead scrapings, laid all in a box, which he then put in a small cupboard and, locking its door, put the key in his pocket. Then he returned to the desk and picked up the packet of letters which had been received on Monday and from which Mr. Fiske’s letter had been taken. There were about a dozen of them and he looked with interest at each one. Every one was cut open the same way, not by a letter-opener, but with shears—a quick clean cut, which took off a tiny edge along the right-hand end. Each was stamped at the top with the rubber “Received” stamp in red ink.

“Clever, clever villain!” mused Bayliss. “I say, Harris, he’s the slickest ever! And nobody could have found him but Yours Truly.”

“Marvelous!” murmured Harris.

Then straight to Inspector Garson Bayliss marched and asked to see the letter that Mr. Fiske wrote to Mr. Hemmingway.

Receiving it, he stared at it steadily for a moment, then, going to the window, scrutinized it through a lens.

Moved by an excitement which he strove not to show, he returned it to Mr. Garson, saying: “You’ve no doubt, I suppose, as to the genuineness of that letter and all that it means and implies.”

“No, I haven’t,” said Mr. Garson, looking straight at the young man. “I have wondered whether there could be anything wrong about Fiske, but that letter is incontrovertible evidence of his veracity.”

“Why couldn’t it be faked?” persisted Bayliss.

“I’ve thought of that,” said Mr. Garson patiently, “but it’s too real. Whether it was written Sunday or not, it was positively posted Sunday evening and it was positively delivered to Mr. Hemmingway Monday morning. The postmark proves that. Then Mr. Hemmingway opened it, for it is cut open precisely the way he cuts open all his letters, and he dated it

with his own dating-stamp, and put it with his lot 'To be answered.' Can anything be more convincing of Fiske's good faith?"

"And yet," said Bert Bayliss, "it is a faked letter, and George Fiske's the murderer of Richard Hemmingway!"

"My dear sir, what do you mean?"

"Just what I say. Richard Hemmingway never saw this letter!"

"Can you prove that?"

"I can. Look at the envelope closely with this lens, in a strong light. What do you see between the letters of Mr. Hemmingway's name?"

"I see"—the Inspector peered closer—"I see faint pencil-marks."

"Can you make out what they spell?"

"No—yes—'G-e-o'— is it 'George Fiske'?"

"It is, though not all the letters are discernible. Fiske wrote this letter on Sunday and mailed it on Sunday, but —he addressed it to himself, not to his employer."

"Why?" exclaimed Mr. Garson in amazement.

"Listen. He addressed it with a very soft pencil to himself, and traced the address very lightly. It reached his boarding-house Monday morning, of course, and then he erased the pencil-marks and boldly wrote Mr. Hemmingway's name in ink. Then he cut off the end, in precisely the way Mr. Hemmingway opens his letters, and put the whole thing in his pocket. All day he carried it in his pocket (I am reconstructing this affair as it must have happened), and at four o'clock he went home with the missive still there.

"Late Monday night he returned. After the three visitors had left, he strangled Mr. Hemmingway. You know he's an athlete, and his employer was a frail old man.

"And then he used the rubber stamp on his own letter and tucked it into the bunch of 'To be answered.' Then he rifled the safe, with Mr. Hemmingway's own keys, turned off all the lights but one and swiftly and silently went home to bed. The rest you know."

"Mr. Bayliss, I can scarcely believe this!" said Inspector Garson, fairly gasping for breath.

"What, you can't believe it when the villain has written his own name as damning evidence against himself?"

“It must be,” said the inspector, again scrutinizing the faint trace of pencil-marks. “But why did he do it?”

“Because he wanted to be executor and thus be able to convert into cash the securities he has stolen.”

“He returned those.”

“Only a few. Oh, it was a clever and deep-laid scheme! Fiske has quantities of bonds and other valuable papers entirely unaccounted for and which, as sole executor, he can cash at his leisure, all unknown to any one.”

“How did you discover this?”

“By the simplest clue. I chanced to notice on Mr. Hemmingway’s desk a pencil, freshly sharpened, but sharpened in a totally different way from those sharpened by the man himself. I looked at all the other pencils on his desk, at the one taken from his pocket and at one in his bedroom—they are all sharpened in exactly the same way, with numerous long careful shaves, producing a whittled pyramid. The pencil I spoke of—here it is—is sharpened by only five strong, clean cuts, making a short exposure of cut wood, quite different from the long point of wood in the others. Then I looked in the waste-basket, which at your orders had not been touched since the discovery of the crime, and _on top_ I found the chips and lead-dust of this very pencil. They were _on top_ of some torn envelopes whose postmarks proved they had come in Monday evening’s mail, which reaches the Hemmingway house about six-thirty. Hence, whoever sharpened that pencil did it _after_ six-thirty o’clock Monday night, and _before_ the discovery of Mr. Hemmingway’s dead body.”

Mr. Garson listened breathlessly. “And then?” he said.

“And then,” went on Bayliss, “I looked around for some pencils sharpened like that, and found several on and in Fiske’s desk in the library. The pencil might have been borrowed from Fiske’s desk, but it was sharpened right there at Mr. Hemmingway’s desk after half-past six o’clock. Fiske, as you know, testified that he left at four and did not return until Tuesday morning.”

Bayliss’ deductions were true. Confronted suddenly with the story and with the traced envelope, Fiske broke down completely and confessed all. He had been planning it for weeks, and had the decoy letter ready to use when Mr. Hemmingway should have a large amount of bonds in his own

home safe. The whole story of the Saturday morning interview was a figment of Fiske's fertile brain, and of course Mr. Hemmingway had no suspicions of his nephew. Fiske had known of the expected callers, had watched outside the house until the last one went away and then, running up the steps, had stopped Mr. Hemmingway just as he was closing the door and requested a short interview. Innocently enough Mr. Hemmingway took his secretary into the library, and, while waiting for his fell opportunity, Fiske talked over some business matters. While making a memorandum, Mr. Hemmingway broke his pencil point, and, unthinkingly, Fiske obligingly sharpened it.

"And to think," murmured Bayliss to Harris, "that little act of ordinary courtesy proved his undoing!"

"Marvelous, Bayliss, marvelous!" said Harris.

THE END

Transcriber's Note: This story appeared in the October 1911 issue of *Adventure* magazine.

*** END OF THE PROJECT GUTENBERG EBOOK A POINT OF
TESTIMONY ***

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